

Rajiv Kumar v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 22 May 2023 · 2023:AHC:111793-DB · Writ - C No. 17148 of 2023 · **Petition disposed; theft recovery certificate withdrawn without merits decision.**

HEADNOTE

Electricity Department withdrew the recovery certificate dated 13 January 2023 issued in a theft case. The writ was disposed of, with liberty to proceed afresh strictly under the procedure in the U.P. Electricity Supply Code, 2005. Theft and any fresh assessment were not decided.

FACTUAL SUMMARY

Rajiv Kumar filed a writ petition in the Allahabad High Court challenging a recovery certificate dated 13 January 2023 issued by respondent no. 3 in a case of theft of electricity. The State of Uttar Pradesh and three other respondents were impleaded. At the hearing, counsel for the Electricity Department stated on instructions that the impugned recovery certificate had been withdrawn and that the respondents would proceed afresh in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

fresh proceedings after withdrawal of a theft recovery certificate

HOLDING

On the Department's statement that the recovery certificate dated 13 January 2023, issued in a case of theft of electricity, stands withdrawn, the writ is disposed of. The respondents may proceed afresh only by strictly following the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 2-3

FLAG No clause number is stated; the order refers generally to the procedure under the U.P. Electricity Supply Code, 2005.

PRINCIPLE TAGS

fresh-proceedings-must-follow-supply-code-procedure After withdrawing a recovery certificate issued for alleged theft of electricity, the Department may proceed again only by strictly following the procedure prescribed in the U.P. Electricity Supply Code, 2005. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD COMMITTED THEFT OF ELECTRICITY, AND WHAT ASSESSMENT OR RECOVERY, IF ANY, IS PAYABLE.

The impugned certificate was withdrawn. The Court did not examine the merits and left the respondents free to proceed afresh under the Supply Code. ¶ 1-3